

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

KHALID WISDOM and MULLER ST-
CYR, JR.,

Plaintiffs,

-against-

THE CITY OF NEW YORK; Police
Officer JAMES GRANT; Sergeant CRAIG
MICHELS; Police Officer MIGUEL
SALGADO; Retired Sergeant JOHN
HENDERSON; Retired Sergeant GARY
MARCHAND; and JOHN and JANE
DOE 1-10,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates Kings County as
place of venue

SUMMONS

The basis of the venue is:
Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: November 5, 2021

Briarcliff Manor, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK

By: _____

Gabriel P. Harvis, Esq.,

Attorneys for the Plaintiffs

80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Defendants:

City of New York
100 Church Street
New York, NY 10007

Police Officer JAMES GRANT, Tax ID # 954890
Gun Violence Suppression Unit
1 Police Plaza
New York, NY 10038

Sergeant CRAIG MICHELS, Tax ID # 939033
City Wide Vandals Task Force
2800 W. 6th Street
Brooklyn, NY 11224

Police Officer MIGUEL SALGADO, Tax ID # 951197
Strategic Response Group 3
397 Coney Island Avenue
Brooklyn, NY 11218

Retired Sergeant JOHN HENDERSON, Tax ID # 925622
1 Police Plaza
New York, NY 10038

Retired Sergeant GARY MARCHAND, Tax ID # 914855
1 Police Plaza
New York, NY 10038

Failure to respond will result in a judgment against you by default and interest from December 7, 2018.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

KHALID WISDOM and MULLER ST-CYR, JR.,

Plaintiffs,

-against-

CITY OF NEW YORK; Police Officer JAMES
GRANT; Sergeant CRAIG MICHELS; Police Officer
MIGUEL SALGADO; Retired Sergeant JOHN
HENDERSON; Retired Sergeant GARY
MARCHAND; and JOHN and JANE DOE 1-10,

Defendants.

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VERIFIED
COMPLAINT

Plaintiffs KHALID WISDOM and MULLER ST-CYR, JR., by their attorneys,
ELEFTERAKIS, ELEFTERAKIS & PANEK, complaining of the defendants,
respectfully allege:

JURISDICTION

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. The action arises under the Fourth Amendment of the United States Constitution and the laws of the City of New York.
3. Jurisdiction is conferred by 42 U.S.C. § 1983 and the New York City Human Rights Law.

PARTIES

4. Plaintiffs are residents of the State of New York.

5. The City of New York is a municipal corporation organized under the laws of the State of New York. It operates the New York City Police Department (NYPD).

6. The individual defendants were, at all relevant times, employees of the City and NYPD. In their interactions with plaintiffs these defendants were acting in the capacity of agent, servant and employee of the City of New York and acted within the scope of their employment and under color of state law. These defendants, *inter alia*, unlawfully and without reasonable suspicion or probable cause stopped, searched, and arrested plaintiffs. Defendants brutalized plaintiffs and used excessive force during the course of their unlawful conduct. These defendants are sued in their individual capacities.

7. John and Jane Doe 1-10 are Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiffs of their rights. John and Jane Doe 1-10 are sued in their individual capacities.

8. At all times here mentioned, the defendants were acting under color of state law.

STATEMENT OF FACTS

9. On or about December 7, 2018, at approximately 2:00 a.m., plaintiffs were lawfully present inside of a vehicle parked in the area of 569 Coney Island Avenue in Brooklyn, New York.

10. As Mr. St-Cyr, Jr. sat in the driver's seat and Mr. Wisdom in the passenger seat, Defendants stopped the vehicle, ordered plaintiffs outside and handcuffed and arrested plaintiffs without probable cause.

11. In the course of arresting plaintiffs, defendants used excessive force, resulting in injuries to both plaintiffs.

12. After being detained at a police precinct for several hours, plaintiffs were released without charges and the arrests were voided.

13. As a result of defendants' misconduct, plaintiffs suffered emotional distress, loss of liberty, mental anguish, fear, pain, bodily injury, anxiety, embarrassment and humiliation and damage to their reputations.

FIRST CLAIM **Unlawful Stop and Search**

14. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

15. Defendants violated the Fourth Amendment because they stopped and searched plaintiffs without reasonable suspicion.

16. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM

False Arrest

17. Plaintiffs repeat and realleges each and every allegation as if fully set forth herein.

18. Defendants violated the Fourth Amendment because they arrested plaintiffs without probable cause.

19. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

THIRD CLAIM

Unreasonable Force

20. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

21. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiffs.

FOURTH CLAIM

Bias-Based Profiling

22. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

23. In initiating law enforcement action against plaintiffs based on their actual and/or perceived race and/or color rather than plaintiffs' behavior or other information linking them to suspected unlawful activity the defendant officers engaged in bias-based profiling in violation of Section 14-151(c)(i) and (ii) of the Administrative Code of the City of New York.

24. Accordingly, plaintiffs are entitled to injunctive and declaratory relief, along with reasonable attorney's fees and costs.

FIFTH CLAIM
Punitive Damages & Attorney's Fees

25. Plaintiffs repeats and realleges each and every allegation as if fully set forth herein.

26. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

27. Accordingly, plaintiffs are entitled to punitive damages and attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, plaintiffs demand that judgment, compensatory, exemplary and punitive damages, in an amount exceeding jurisdictional limits of all lower Courts be entered against defendants on all counts, along with reasonable attorney's fees and costs.

Dated: November 5, 2021

Briarcliff Manor, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: 

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